		(email/letter is insufficient) concerning the issues raised in the motion to strike. **Plaintiff/cross-defendant is to file and serve a declaration no later than nine (9) court days before the hearing date describing the parties' meet and confer efforts, and specifying what issues have been resolved, or remain for the Court to resolve. If no declaration is timely filed, the Court will construe this to mean that the issues have been resolved and will take the motion to strike off-calendar.**
4	**Edwards v. Arpajian Enterprises, Inc.** 2025-01530696 Motion to Compel Arbitration	The Court GRANTS Defendant's Motion to Compel Arbitration. The parties do not dispute the existence of an agreement to arbitrate. Defendant attached the Arbitration Provision (Provision) to its Motion. (Weber Decl., Ex. 2.) <u>Unconscionability:</u> Procedural and substantive unconscionability "must both be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability." (*Armendariz v. Foundation Health Psychcare Servs., Inc.* (2000) 24 Cal. 4th 83, 114 (*Armendariz*).) "[T]he more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa." (*Ibid.*) "The party resisting arbitration bears the burden of proving unconscionability." (Pinnacle, supra, 55 Cal. 4th at p. 247.) <u>a. Procedural Unconscionability</u>: "Procedural unconscionability focuses on the elements of oppression and surprise." (*Serafin v. Balco Properties Ltd., LLC* (2015) 235 Cal.App.4th 165, 177.) "Adhesion contracts are subject to scrutiny because they are not the result of freedom or equality of bargaining. However, they remain valid and enforceable unless the resisting party can also show that one or more of the contract's terms is substantively unconscionable or otherwise invalid." (*Ramirez v. Charter Commc'ns, Inc.* (2024) 16 Cal.5th 478, 492–93. Plaintiff's employment was conditioned on signing the Provision. Thus, Plaintiff has shown a moderate degree of procedural unconscionability. <u>b. Substantive Unconscionability:</u> "Substantive unconscionability focuses on the actual terms of the agreement and evaluates whether they create 'overly harsh' or 'one-sided' results.'" (*Serafin v. Balco Properties Ltd., LLC* (2015) 235 Cal.App.4th 165, 177.) The Provision's scope encompassing "all claims and controversies … relating to, or resulting from, or in any way arising out of the attached agreement" is not substantively unconscionable. (See, *Stoker v. Blue Origin, LLC* (2026) 120

		Cal.App.5th 91, 107; *Cook v. University of Southern California* (2024) 102 Cal.App.5th 312, 321.) The Provision is modestly substantively unconscionable for requiring arbitration conclude within 120 days of appointing an arbitrator. (See, *Baxter v. Genworth North America Corp.* (2017) 16 Cal.App.5th 713, 736.) Paragraph 9 of the Provision is substantively unconscionable because it limits the pool of arbitrators to those who, like Defendant, have experience as a restaurant or bar owner. (Weber Decl., Ex. 2.) However, this provision in severable. (See Civ. Code, § 1670.5(a); *Gentry v. Superior Court* (2007) 42 Cal.4th 443, 466.) Thus, Plaintiff has shown moderate procedural unconscionability and a modest degree of substantive unconscionability. Therefore, Plaintiff has not shown sufficient unconscionability to void the arbitration provision. Accordingly, Defendant's Motion is granted. The Court will set a post-arbitration status conference for a future date to be determined on July 6, 2026. The parties are ORDERED to file a Status Report 5 days prior.
5	**Loeffler v. Association Lien Services, Inc.** 2016-00873201 Motion to Tax Costs	The Court GRANT's Judgment Debtor, Jennifer Loeffler's Motion to Tax Costs in an amount to be determined after the Court receives further information. Loeffler moves to tax costs on the grounds Trabuco did not credit a payment of $6,000 in the memorandum of costs and interest was miscalculated. Trabuco opposes on the grounds Loeffler's motion is untimely and the calculations are proper. Timeliness of Loeffler's motion. A judgment debtor may file a motion to tax within 10 days after the memorandum of costs is served on the judgment debtor. (Code Civ. Proc., § 685.070, subd. (c).) The memorandum of costs at issue was served on 3/6/26, and Loeffler's motion was filed on 3/12/26. Trabuco contends Loeffler's motion is nevertheless untimely because Loeffler did file motions to tax costs in response to previously filed memoranda of costs despite reflecting the same alleged issue with the interest calculation. Trabuco provides no authority for its contention that failing to object to a prior memorandum of costs precludes a party from timely objecting to any subsequently filed memorandum.